



Notification Waiver Determination

CleanPeak Energy Holdings – Sustainable Energy Infrastructure

Acquisition	CleanPeak Energy Holdings Pty Ltd and its wholly-owned subsidiary CleanPeak IFM Projects Pty Ltd as trustee for CleanPeak IFM Projects Trust (CleanPeak IFM) (together referred to as CleanPeak) applied for a notification waiver in respect of CleanPeak IFM's proposed acquisition of 100% of the shares in Sustainable Energy Infrastructure Holdings Pty Ltd and 100% of the units in the Sustainable Energy Infrastructure Holdings Trust (SEI), as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	14 May 2026

Parties to the Acquisition	The acquirer, CleanPeak, is a developer and operator of renewable energy infrastructure, including solar farms and battery energy storage systems, and a supplier of renewable energy and clean energy solutions through solar and battery energy assets to large industrial and commercial customers predominantly in New South Wales. CleanPeak also provides asset management services for compressed natural gas facilities on the premises of industrial customers in Victoria, New South Wales and Queensland. In 2025, KKR & Co. Inc. (together with its subsidiaries, KKR) acquired a significant interest in CleanPeak. KKR is a global investment firm that offers alternative asset management as well as capital markets and insurance solutions. KKR sponsors investment funds that invest in private equity, credit, and real assets and has strategic partners that manage hedge funds. The target, SEI, is a sustainable energy infrastructure investor which owns a diversified portfolio of small scale (up to 5MW) solar farms and battery energy storage systems (BESS) in Victoria, New South Wales and South Australia as well as a compressed natural gas facility located in Queensland. The parties develop, own and operate renewable energy assets (in particular, solar farms and BESS) and supply electricity generation in the National Electricity Market (NEM) in Victoria, NSW and South Australia. The parties also operate compressed natural gas (CNG) facilities in Queensland.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and

	had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information provided in the application, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular: a. there is a small horizontal overlap between the parties in the supply of electricity generation in the NEM in Victoria, NSW, South Australia and nationally b. the parties' combined share in the supply of electricity generation in the NEM in Victoria, NSW, South Australia and nationally are estimated to be low and the increase in share of supply arising from the Acquisition would be small c. there are alternative suppliers of wholesale electricity generation in the NEM in Victoria, NSW, South Australia and nationally d. there is no overlap between the parties' operations in relation to CNG e. there appears to be a low risk of foreclosure or other concerning vertical effects resulting from exclusionary conduct post-acquisition. The ACCC has also had regard to the likelihood that, if the Acquisition were put into effect, the notification thresholds determined under section 51ABP(1) of the Act would apply. While the ACCC considers that the notification thresholds are likely to be met, given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.
--	--

Determination made by Commissioner Woodward pursuant to a delegation under section 25(1) of the Act